

1 AN ACT relating to concealed firearms and deadly weapons.

2 *Be it enacted by the General Assembly of the Commonwealth of Kentucky:*

3 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 237 IS CREATED TO
4 READ AS FOLLOWS:

5 (1) As used in this section:

6 (a) "Provisional license" means a license to carry concealed firearms or other
7 deadly weapons issued pursuant to this section; and

8 (b) "Standard license" means a license to carry concealed firearms or other
9 deadly weapons issued pursuant to KRS 237.110.

10 (2) The Department of Kentucky State Police shall issue provisional licenses to carry
11 concealed firearms or other deadly weapons, or a combination thereof, to persons
12 who:

13 (a) Are eighteen (18) years of age but younger than twenty-one (21) years of
14 age; and

15 (b) Notwithstanding KRS 237.110(4)(c), otherwise meet the criteria set forth in
16 KRS 237.110(4) and the requirements of KRS 237.110(3).

17 (3) (a) Except as provided in this section, the issuance and regulation of
18 provisional licenses to carry concealed firearms and deadly weapons shall
19 be governed by KRS 237.110.

20 (b) Any reference in the Kentucky Revised Statutes to a license issued pursuant
21 to KRS 237.110 shall also be considered a reference to a provisional license
22 issued pursuant to this section.

23 (4) A provisional license issued pursuant to this section shall:

24 (a) Be valid throughout the Commonwealth and, except as provided in other
25 specific sections of the Kentucky Revised Statutes or federal law, permit the
26 holder of the provisional license to carry firearms, ammunition, other
27 deadly weapons, or a combination thereof, at any location in the

1 Commonwealth;

2 (b) Unless revoked or suspended as provided by law, be valid until the holder
3 turns twenty-one (21) years of age;

4 (c) Authorize the holder of the provisional license to carry a concealed firearm,
5 other deadly weapon, or a combination thereof, on or about his or her
6 person; and

7 (d) Authorize the holder of the provisional license to carry ammunition for a
8 firearm on or about his or her person.

9 (5) A provisional license issued under this section shall be readily distinguishable
10 from a standard license issued pursuant to KRS 237.110.

11 (6) (a) Not less than ninety (90) days before the expiration of the provisional
12 license, the Department of Kentucky State Police shall mail to the holder of
13 the provisional license a written notice of the expiration and an application
14 to switch from a provisional license to a standard license. The application to
15 switch from a provisional license to a standard license shall be in a format
16 prescribed by the Department of Kentucky State Police.

17 (b) The outside of the envelope shall bear only the name and address of the
18 applicant. No other information relating to the applicant shall appear on
19 the outside of the envelope sent to the applicant.

20 (c) The holder of a provisional license may apply for a standard license by:

21 1. Filing with the sheriff of his or her county of residence the paper
22 application form under this subsection, or filing with the Department
23 of Kentucky State Police an electronic application form in lieu of a
24 paper application form;

25 2. Stating that he or she remains qualified pursuant to the criteria
26 specified in KRS 237.110(3) and (4); and

27 3. Paying an application fee prescribed by the Department of Kentucky

State Police.

(d) The sheriff shall issue to the applicant a receipt for the paper application to switch from a provisional license to a standard license and shall date the receipt. The Department of Kentucky State Police shall issue to the applicant a receipt for an electronic application to switch from a provisional license to a standard license and shall date the receipt.

(e) A standard license under KRS 237.110 shall be issued to a qualified applicant upon:

1. Receipt of the completed application to switch from a provisional license to a standard license;
2. Records check as specified in KRS 237.110(3);
3. Determination that the applicant is not ineligible for a standard license as specified in KRS 237.110(4); and
4. Appropriate payment of fees.

Upon issuance of the standard license, the provisional license shall be destroyed by the sheriff.

(f) The holder of a provisional license who fails to submit an application to switch from a provisional license to a standard license within six (6) months of the expiration of the provisional license shall be required to submit an application under KRS 237.110.

(g) A standard license issued under this subsection shall not be valid until an applicant is twenty-one (21) years of age. A provisional licensee who applies for a standard license under this subsection shall not be required to retake the firearms training described in KRS 237.110(4).

(7) A provisional license which has expired shall be void and shall not be valid for any purpose other than surrender to the sheriff in exchange for a standard license.

- 1 (8) The Department of Kentucky State Police may promulgate any necessary
2 administrative regulations in accordance with KRS Chapter 13A to administer
3 this section.